



SPONSOR: Rep. Chukwuocha & Sen. Brown & Sen. Cruce

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 228

AN ACT TO AMEND TITLE 4 OF THE DELAWARE CODE RELATING TO MARIJUANA ESTABLISHMENT LICENSES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 13, Title 4 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1322. Duties and powers of the Commissioner.

(a) The Commissioner, in accordance with the Administrative Procedures Act, Chapter 101 of Title 29, shall do all of the following:

(6) Hear complaints in regard to the conduct of business in any establishment where marijuana or marijuana products are licensed to be ~~sold~~ sold, or in regard to an application for a retail license or conversion license to operate a marijuana retail facility in a particular location, upon receipt of a petition signed by at least 10 individuals who are residents of the same neighborhood. Ten days' notice of such hearings, together with a recital of the complaint, must be sent by the Commissioner's office by registered mail to the address of the holder of the license or applicant for a license for the establishment. Like notice must be delivered at the establishment by affixing the notice addressed to the holder of the license to the outside of an entrance door to the establishment. The hearings must be public and conducted by the Commissioner. The Commissioner, for the purpose of such hearings, has the power to issue subpoenas, compel the attendance of witnesses, administer oaths, take testimony, and compel the production of pertinent books, payrolls, accounts, papers, records, and documents. In case any person summoned to testify or to produce any such written or printed evidence refuses, without reasonable cause, to be examined, to answer a legal and pertinent question, or to produce any such written or printed evidence, the Commissioner conducting the hearing may certify the fact of any such refusal to the Superior Court of the county in which such hearing is held and the court may proceed against the person so refusing as for a contempt and punish such person in the same manner as persons are punished for contempt of court. A retail marijuana establishment or conversion licensee or applicant who wishes to operate a retail establishment may not begin operations in a location that is the subject of a petition under this paragraph until the conclusion of the hearing and a decision by the Commissioner.

§ 1354. Grounds for refusal of license; transfer or extension of premises.

24 (a) The Commissioner may not grant a license under this chapter in any county or subdivision thereof, if granting a
25 license is contrary to the law of any municipality or county adopted under § 1351 of this title. The Commissioner may not
26 grant a conversion license or recreational license to a marijuana facility if the location of that facility is contrary to the law
27 of a municipality under § 1351 of this title. If a regulation or ordinance concerning recreational marijuana is under
28 consideration in a municipality, the Commissioner may not issue a conversion or recreational license until the regulation or
29 ordinance of the municipality is finalized.

30 Section 2. This Act is effective upon enactment. For a conversion or recreational license that was issued prior to
31 this enactment date that would be in violation of § 1354 of Title 4 as set forth in Section 1 of this Act, the Commissioner
32 may suspend the license while the license holder secures a location that complies with the law of the municipality in which
33 the facility is proposed to be located.

SYNOPSIS

This Act provides that the Commissioner may not grant a conversion license or recreational license to a marijuana facility if the location of that facility is contrary to the law of a municipality under § 1351 of this title. Nor may the Commissioner issue such a license if a ordinance or regulation is under consideration in a municipality.

This Act also clarifies that the Commissioner must hear complaints in regards to applications for retail licenses or conversion licenses to operate a marijuana retail facility in a neighborhood upon receipt of a petition signed by at least 10 residents of the same neighborhood.

Section 2 of the Act allows the Commissioner to suspend a license issued prior to the passage of this Act to allow a licensee to come into compliance.